

HOUSE BILL 1432

By Leatherwood

AN ACT to amend Chapter 55 of the Private Acts of 1993; as amended by Chapter 134 of the Private Acts of 1998; and any other acts amendatory thereto, relative to the City of Bartlett.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 55 of the Private Acts of 1993, as amended by Chapter 134 of the Private Acts of 1998, and any other acts amendatory thereto, is amended in Section 1 of Article III by deleting the Section in its entirety and substituting instead the following:

SECTION 1. Officers to be elected. Terms of office. Term Limits. There shall be elected by the qualified voters of the City of Bartlett, a Mayor and six (6) Aldermen in non-partisan, at-large, general municipal elections held in November. The Mayor and Aldermen shall be elected for terms of four (4) years, and each shall hold his or her office until his or her successor is elected and qualified. The office of Mayor is limited to three (3) four-year terms, or a total of twelve (12) years served; and the office of Alderman is limited to three (3) four-year terms, or a total of twelve (12) years served. Serving part of a term as Mayor or Alderman due to assumption, appointment, or election for less than the full four-year term shall not count toward the three-term limit for that office. The term limits provided in this section shall apply to each office as it comes up for election following the effective date of the amendment enacting these term limits. Upon the effective date of that amendment, the term limits shall not apply to disqualify any incumbent member of the Board of Mayor and Aldermen from completing his or her current term of office. It is the intent of this Charter to designate the existing six (6) Aldermanic positions one (1) through six (6). In filing for election, any candidate for Alderman or Mayor shall select and identify the position sought. The Mayor and all Aldermen shall be elected from the City-at-Large and one (1) Alderman shall be elected

to each position. The candidates receiving the highest number of votes in an election for each designated position shall be declared elected as Mayor and Aldermen. In the event of a tie vote in any Mayor or Alderman's election, the incumbent Board shall decide which of the candidates shall serve. The Mayor, at the first regular meeting after each general election and swearing-in, shall appoint from the Board's membership a Vice-Mayor for a term of two (2) years. The Board shall also elect from its membership a register for a term of four (4) years. At the regular November election held in 1994, elections shall be held for the position of Mayor and Aldermanic positions 1, 2, and 3. Persons elected on that date shall serve four-year terms. At the regular November election held in 1996, elections shall be held for Aldermanic positions 4, 5, and 6. Persons elected on that date shall serve four-year terms. Such staggered elections shall continue thereafter.

SECTION 2. Chapter 55 of the Private Acts of 1993, as amended by Chapter 134 of the Private Acts of 1998, and any other acts amendatory thereto, is amended in Section 6 of Article III by deleting the Section title "Officials, Oath of Office." and substituting instead "Officials. Resign to Run. Oath of Office."; by designating the existing language of Section 6 as a new subsection (b) entitled "Oath of Office."; and by adding the following language as a new subsection (a):

(a) Resign to Run. Any sitting mayor or alderman who runs for any other position on the Board of Mayor and Aldermen in an election in which his or her position is not up for reelection shall be required to submit a letter of resignation of his or her current position at the time of filing for election, and such resignation shall be irrevocable and shall be effective at the Oath of Office Ceremony following the subject election.

SECTION 3. Chapter 55 of the Private Acts of 1993, as amended by Chapter 134 of the Private Acts of 1998, and any other acts amendatory thereto, is amended in Section 2 of Article V by deleting the last paragraph of Section 2 and substituting instead the following:

The mayor shall have authority to make appointments, promotions, and transfers of employees; to make demotions, suspensions, and removals of officers and employees with or without notice and with or without cause; and may delegate such authority as he deems necessary.

SECTION 4. Chapter 55 of the Private Acts of 1993, as amended by Chapter 134 of the Private Acts of 1998, and any other acts amendatory thereto, is amended in Section 3 of Article XI by deleting the Section title "Personnel System." and substituting instead "Personnel Rules and Regulations."; by deleting subsection (a) in its entirety; by deleting the title of subsection (b), "Personnel Rules and Regulations."; and by designating the language of subsection (b) as Section 3.

SECTION 5. Chapter 55 of the Private Acts of 1993, as amended by Chapter 134 of the Private Acts of 1998, and any other acts amendatory thereto, is amended in Section 4 of Article XI by deleting the language of subdivision (a)(1) in its entirety and substituting instead the following:

(1) No person shall be appointed to or removed from, or in any way favored or discriminated against with respect to any city position or appointive city administrative office because of race, color, religion, sex, national origin, age (forty (40) years of age and older), disability, or genetic information.

SECTION 6. Nothing in this act shall be construed to remove any incumbent from office or abridge the term of any incumbent prior to the end of the term for which such elected official was selected, as prescribed in Article XI, Section 9 of the Constitution of the State of Tennessee.

SECTION 7. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Bartlett. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body of the City of Bartlett and certified to the secretary of state.

SECTION 8. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 7.